

Discovery Law & Motion

25. 9:01 AM CASE NUMBER: N23-0911
CASE NAME: VINCENT SARGENTINI VS. PATRICK CLARK
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR
PRODUCTION FROM RICHMOND ROD & GUN CLUB, SET ONE
FILED BY: SARGENTINI, VINCENT
TENTATIVE RULING:

This matter is ordered off calendar and referred to the court-appointed discovery referee pursuant to the Order signed April 8, 2026.

Law & Motion
Add On

26. 9:00 AM CASE NUMBER: C24-00086
CASE NAME: EMIL MOUTON VS. ALLAN MENDIETA
HEARING ON MOTION TO STRIKE: 1ST AMENDED COMPLAINT
FILED BY: MENDIETA, ALLAN S.
TENTATIVE RULING:

Before the Court is a motion by defendant Allan Mendieta to strike plaintiffs' punitive damage allegations and prayer in the operative first amended complaint. For the reasons set forth, the motion to strike is **GRANTED IN ITS ENTIRETY**.

Background

Plaintiffs Emil Mouton and Elizabeth Kelly allege they were injured in a motor vehicle accident. The driver of the other vehicle was defendant Allan Mendieta. Plaintiffs sued Mr. Mendieta for the negligence (motor vehicle) and general negligence. The Court granted them leave to amend their original complaint to allege additional facts and attempt to state a basis for seeking punitive damages.

Mr. Mendieta has filed a motion to strike the punitive damages allegations and prayer for relief. Plaintiffs oppose the motion.

Procedural Objection – Late Filing

A motion to strike pursuant to Code of Civil Procedure sections 435 and 436 is subject to the same deadlines as a demurrer. Specifically, a motion to strike may be served and filed "within the time allowed to respond to a pleading." (Code Civ. Proc. § 435(b)(1).) (*See also* Cal. R. Ct., Rule 3.1322(b) ["A notice of motion to strike must be given within the time allowed to plead, and if a demurrer is interposed, concurrently therewith, and must be noticed for hearing and heard at the same time as